Place Technology Group Pte. Ltd.

Terms of Use

PlaceOS One Software as a Service agreement

Important Disclosures

Our full terms and conditions are set out below. However, before you place an order for our Services, we want to highlight some important points:

- **Subscription service:** Our Services are provided on a subscription basis. By placing an order, accepting a quote, or otherwise signing up for the Services, you agree to purchase the Services on an ongoing subscription basis for the applicable minimum term set out in your Account, Order, Accepted Quote, or otherwise agreed with us. Your subscription will automatically renew unless terminated in accordance with clause 16.

- **Price changes:** We may change our prices from time to time. If we do so, we will give you at least 30 days' prior notice. The new Price will apply from the start of your next billing cycle after that notice period. If you do not agree to the new Price, you may terminate this Agreement in accordance with these terms before the new Price takes effect.

- **Changes to these Terms:** We may amend these Terms from time to time in accordance with clause 19.1. If we do so, we will notify you by publishing the updated Terms on our Site, through your Account, or by email.

- **Limitation of liability:** To the maximum extent permitted by law, we are not liable for any loss of or damage to property, personal injury, delay, failure in providing the Services, or breach of these Terms or any law, to the extent caused or contributed to by an event beyond our reasonable control, a third party, or any act or omission of you, your Personnel, Authorised Users or related parties.

- **Consumer law:** Nothing in these Terms limits or excludes any rights you may have under applicable consumer protection laws that cannot lawfully be excluded.

1. Introduction

PlaceOS One Software as a Service is a hosted workplace experience solution that enables customers to access and use workplace management features and related services on a subscription basis.

2. Definition and interpretation

The definitions and rules of interpretation that apply to this Agreement are set out in clause 20.

3. Parties and agreement

This Agreement is between you, being the customer acquiring the Services (referred to in this Agreement as **you** or **your**), and **Place Technology Group Pte Ltd** (Registration Number 202021470H), including its successors and permitted assigns (referred to in this Agreement as **we**, **us** or **our**). Each party is a **Party** and together they are the **Parties**.

This Agreement governs the supply of the Services by us to you. Please read this Agreement carefully. If you have any questions, please contact us before accepting this Agreement or using the Services

4. Services

You may request, order or subscribe for the Services through our Site, an Accepted Quote, an Order, your Account, a statement of work, or as otherwise agreed in writing between the Parties.

We will provide the Services, either ourselves or through our Personnel, in accordance with this Agreement.

5. Acceptance

5.1. Acceptance

You accept this Agreement, and a binding agreement is formed between the Parties, when you first do any of the following:

- sign or otherwise accept an Order, quote, proposal, statement of work, or other document that references this Agreement;
- provide us with a purchase order in response to our quotation or proposal;
- pay any invoice issued by us for the Services;
- Click a box, button or similar mechanism on the Site or through your Account indicating your acceptance of this Agreement or an Accepted Quote; or
- otherwise access or use the Services after being given notice of this Agreement.

5.2. Acceptance on behalf of an entity

If you accept this Agreement on behalf of a company, employer, organisation, government body or other legal entity (**Entity**), then “you” and “your” refer to that Entity, and you represent and warrant that you are authorised to bind that Entity to this Agreement.

5.3. Term

This Agreement commences on the date you accept it in accordance with clause 5.1 and continues for the subscription term set out in your Account, Order, Accepted Quote, or otherwise agreed between the Parties, and then renews automatically for successive billing cycles unless terminated in accordance with clause 16.

5.4. Account Creation

We may create an account for you to enable you and your Authorised Users to access and use the Services (**Account**). You must ensure that all information you provide to us, or that we request from you in connection with creating or maintaining your Account, is complete, accurate and up to date.

5.5. Account Owner

You are responsible for your Account and remain the Account owner unless and until we approve a transfer of the Account to another person or entity. If you wish to transfer ownership of the Account, you must provide us with a written request, together with the proposed new account owner's written consent to assume full responsibility for the Account, in a form reasonably acceptable to us.

5.6 Account credentials and Authorised Users

We may provide you, or enable you to create, Account credentials such as usernames and passwords. You must keep all Account credentials secure and confidential.

You are responsible for:

- all activity carried out through your Account, including by your Authorised Users; and
- ensuring that your Authorised Users comply with this Agreement.

We are not responsible for the management or administration of your Account or your Authorised Users, except to the extent expressly stated in this Agreement.

6. Licence and restrictions on use

6.1. Licence

Subject to your compliance with this Agreement, including payment of all applicable Fees, we grant you a limited, non-exclusive, non-transferable, non-sublicensable (except as expressly permitted under this Agreement), revocable licence to access and use the Services during the Term solely for your internal business purposes and in accordance with this Agreement (**Licence**).

6.2. Licence Restrictions

You must not, and must ensure that your Authorised Users do not, access or use the Services except as permitted by this Agreement. You must not, and must not permit any other person to:

(a) use the Services in any way that breaches any applicable Laws or infringes the rights of any person, including Intellectual Property Rights;

(b) use the Services to store, transmit, publish or communicate material that is unlawful, defamatory, offensive, abusive, indecent, menacing, misleading or otherwise inappropriate;

(c) use the Services in any way that damages, disrupts, interferes with or interrupts the Services or any related systems or networks;

(d) introduce into the Services or our systems any malicious code, virus, worm, Trojan horse, malware, spyware or other harmful or disruptive code;

(e) disclose Account credentials to unauthorised persons or allow any person other than Authorised Users to access or use the Services through your Account;

(f) use the Services to attempt to gain unauthorised access to any system, network, account or data, including through security breaches, probing, scanning, penetration attempts, denial of service attacks, spoofing, forged routing information or similar activities;

(g) use any automated means, program, script, bot, scraper, crawler, command or process to interfere with, disable, overburden or impair the Services or any person's use of the Services;

(h) use the Services to send spam, harassing communications, fraudulent communications, or messages that breach any person's privacy or facilitate identity theft, phishing or other deceptive conduct;

(i) circumvent or attempt to circumvent any authentication, access control, security measure, usage limit or technical restriction of the Services or any related network, account or host;

(j) copy, modify, adapt, translate, reverse engineer, decompile, disassemble, create derivative works from, or otherwise attempt to discover the source code, object code or underlying structure, ideas or algorithms of the Services, except to the extent such restriction is prohibited by law; or

(k) use the Services for the benefit of any third party, including to provide outsourcing, service bureau, timesharing, rental, resale, sub-licensing or other similar services, except as expressly permitted under this Agreement.

6.3. Required licences, approvals and consents

You must promptly obtain and maintain all licences, approvals, permissions and consents required for us to provide the Services to you, including any third-party consents required for integrations, data access, implementation, deployment or use of the Services in your environment.

7. Authorised Licence

7.1 Authorised Licence

If specified on the Site, in your Account, in an Order, Accepted Quote, statement of work, or otherwise agreed in writing between the Parties, your Licence to access and use the Services is limited by the applicable usage metrics for your subscription, which may include the number of desks, rooms, floors, buildings, square metres (SQM), square feet (SQF), users, modules, locations, or any other agreed usage metric (**Authorised Licence Metrics**).

You must not access or use the Services in excess of the Authorised Licence Metrics unless otherwise agreed by us in writing.

7.2 Increasing on Authorised Licence Metrics

You may request an increase to your Authorised Licence Metrics at any time by email, through your Account, or through any other method we make available.

Any approved increase to the Authorised Licence Metrics may result in an adjustment to the Fees, effective from the date of the increase or the start of the next billing cycle, as notified by us.

8. Third-Party Inputs and interoperability

8.1. Third-Party inputs

You acknowledge and agree that the availability, performance and functionality of the Services may depend on, interact with, or be affected by third-party products, services, systems, integrations, networks, suppliers, subcontractors, or other external inputs (Third-Party Inputs).

8.2 No liability for Third-Party Inputs

To the maximum extent permitted by law, we are not responsible for, and will have no Liability for, any delay, failure, defect, unavailability, error, security issue, loss or breach arising from or caused by any Third-Party Inputs, including where the Services do not operate as expected because of any Third-Party Inputs.

8.3 Interoperability with Third-Party Inputs

Where the Services interoperate with or connect to any Third-Party Inputs, you acknowledge and agree that:

(a) such interoperability may be modified, suspended or discontinued at any time by the relevant third party or as a result of changes to the relevant Third-Party Inputs;

(b) we do not warrant that any Third-Party Inputs will continue to be available, compatible or interoperable with the Services; and

(c) we may modify, suspend or discontinue any feature or functionality of the Services that depends on Third-Party Inputs if those Third-Party Inputs are unavailable, changed, no longer supported, or no longer available on reasonable commercial terms.

8.4 Your responsibility for Third-Party Inputs

You are responsible for obtaining and maintaining all rights, licences, consents, subscriptions and access required for any Third-Party Inputs that you want us or the Services to use, connect to, or integrate with.

9. Setup Services, Data Load, Hosting and Variations

9.1. Setup Services and Data Load

If applicable, we will provide any Setup Services, implementation services, configuration services, onboarding services, hosting services and Data Load services as set out on the Site, in your Account, in an Order, Accepted Quote, statement of work, or as otherwise agreed in writing between the Parties.

9.2. Variation

You may request changes to the scope, functionality, configuration, implementation, setup, hosting or nature of the Services at any time.

If you request a change, we may, at our discretion:

(a) accept the request;

(b) reject the request; or

(c) provide you with a statement of work, change request, updated quote, or other written proposal setting out the scope of the change, any assumptions, delivery timing, and any additional Fees or changes to the Fees.

We are not obliged to perform any services outside the scope of the Services unless the Parties agree to the variation in writing.

Once agreed in writing, any varied or additional services will form part of the Services, any related fees will form part of the Fees, and the relevant statement of work, change request, Accepted Quote, or other agreed document will be incorporated into and governed by this Agreement.

10. Support Services

We will provide the support services set out in this clause 10 as part of your subscription for the Services, to the extent included in your subscription plan, Account, Order, Accepted Quote, or as otherwise agreed in writing between the Parties.

10.1. Product Support Inclusions

Subject to this Agreement, product support may include:

(a) performance, maintenance and security updates made generally available by us for the Services;

(b) new features, enhancements and improvements released by us for the licensed product or subscription tier acquired by you;

(c) dependency, platform and infrastructure updates that we consider reasonably necessary for the operation, maintenance, security or performance of the Services; and

(d) support and maintenance for the parts of the Services managed by us, which may include user-facing interfaces, portals, back-office tools, databases, application servers, metrics services and related backend components.

10.2. Hosting Support Inclusions

Where hosting is provided by us as part of the Services, hosting support may include:

(a) periodic updates to the hosted environment, microservices and related infrastructure for bug fixes, maintenance, relevant new features or significant security updates;

(b) monitoring of relevant infrastructure resources, which may include CPU, memory, storage and network utilisation, together with the configuration of alerts for certain operational thresholds or service events;

(c) service logging, operational monitoring and log retention for a limited period determined by us from time to time, and the use of tools that assist our support personnel and authorised administrators to investigate issues and review service events; and

(d) access by our authorised support personnel and administrators to monitoring, alerting and logging tools reasonably required to operate, maintain and support the Services.

For clarity, to the maximum extent permitted by law, we are not liable for any downtime, delay, degradation, interruption or failure caused by third-party hosting providers, infrastructure providers or other Third-Party Inputs.

10.3. General Support Exclusions

Unless otherwise expressly agreed in writing, support services do not include:

(a) updates, maintenance, support or troubleshooting for third-party systems, products or services not provided by us, including third-party identity, directory or authentication systems;

(b) changes to integrations between the Services and any third-party systems where those changes are required because of a modification, update, deprecation, withdrawal or failure of the relevant third-party system;

(c) access to, or use of, product features, modules or functionality that form part of a separate product, subscription tier or licence not purchased by you; or

(d) major upgrades, migrations, re-implementations, re-deployments or material reconfiguration work, unless expressly included in your subscription, Order, Accepted Quote or otherwise agreed in writing.

10.4. Incident Management Procedures

For operational issues relating to the Services, the following incident management procedures apply, unless otherwise agreed in writing:

(a) the primary point of contact for incident reporting and service-related support requests will be our service desk;

(b) incident reports and support requests must be submitted through the support channels we nominate from time to time, including our ticketing or service desk platform;

(c) unless otherwise approved by us, only your nominated service desk personnel, product owner, account administrator, or other authorised contact persons may submit incident reports or support requests to us;

(d) Support hours are Business Hours as 9:00am to 5:00pm, Monday to Friday, excluding applicable public holidays, unless otherwise stated in your subscription, Order, Accepted Quote or support documentation;

(e) support will be provided in English, unless otherwise agreed in writing;

(f) our current service desk contact details and support channels may be made available on the Site, through your Account, in your onboarding materials, or in other support documentation provided by us;

(g) upon receipt of a valid incident report or support request, we will use reasonable efforts to issue a ticket or reference number that may be used for follow-up and tracking purposes; and

(h) our ticketing or service desk platform will be the primary communication and tracking platform for incidents and requests, and we may provide you with access to that platform where we determine it is appropriate.

10.5. Availability

Subject to this Agreement, we will use reasonable efforts to make the Services available at least 99.5% of the Service Hours in each calendar month.

For the purposes of this clause:

(a) **Service Hours** means all hours other than Scheduled Maintenance periods;

(b) **Availability** for a calendar month is calculated as:
Availability % = ((Service Hours - Service Downtime) / Service Hours) × 100

(c) **Service Downtime** means the period during which the hosted production environment for the Services is unavailable to all users, excluding any unavailability caused by:

(i) Scheduled Maintenance;
(ii) emergency maintenance;
(iii) Third-Party Inputs;
(iv) internet, network or telecommunications issues outside our reasonable control;
(v) customer systems, customer configuration, or Customer Data; or
(vi) a Force Majeure Event;

(d) **Scheduled Maintenance** means planned maintenance carried out during the maintenance window notified by us from time to time. Unless otherwise notified, the

standard maintenance window is **3:00am to 5:00am** in the applicable regional time zone (**AEST/AEDT, as applicable**) on the **second Monday of each month**; and

(e) we will use reasonable efforts to minimise disruption and maximise service availability during Scheduled Maintenance.

10.6. Response and Resolution Times

We will use reasonable efforts to respond to and resolve incidents within the target timeframes set out below during Support Hours. Response and resolution times are targets only and are not guarantees.

(a) Incident priority classification

Incidents may be classified as follows, taking into account the number of affected users and the severity of the impact on the Services:

- **P1 (Showstopper):** a critical incident causing a complete outage of the Services or a severe failure affecting a large user group, with no reasonable workaround available.
- **P2 (Major):** a significant incident materially affecting the Services or core functionality for a large or medium user group, with limited or no reasonable workaround.
- **P3 (Moderate):** an incident causing a material but not critical impact on the Services, or affecting a smaller user group, where a workaround may be available.
- **P4 (Minor):** a low-impact incident causing limited disruption to individual users or non-core functionality.
- **P5 (Cosmetic):** a minor issue of a cosmetic nature that does not materially affect functionality.

For guidance only, incident priority may generally be determined as follows:

Impact level	Typical priority
Large user group / critical impact	P1 or P2
Small user group / moderate impact	P2, P3 or P4
Single user / low impact	P3, P4 or P5

(b) Target response and resolution times

Subject to this Agreement, our target response and resolution times for incidents are:

Priority	Target response time	Target resolution time
P1	30 business minutes	4 business hours

Priority	Target response time	Target resolution time
P2	1 business hour	8 business hours
P3	4 business hours	24 business hours
P4	6 business hours	48 business hours
P5	6 business hours	48 business hours

(c) General

(i) If there is a disagreement between the Parties regarding the priority assigned to an incident, the priority will be determined by us acting reasonably, having regard to the nature, severity and impact of the incident, and the matter may be escalated in accordance with clause 10.7.

(ii) Response times are measured from the time a valid incident is logged through the nominated support channel during Support Hours.

(iii) Resolution times are measured from the time the incident is accepted by us as a valid incident and may include temporary workarounds, mitigations, patches or permanent fixes, as determined by us acting reasonably.

(iv) Response and resolution targets do not apply to the extent that a delay is caused by Third-Party Inputs, customer systems, customer delays, Force Majeure Events, or any circumstances outside our reasonable control.

10.7. Escalation Management

We maintain an escalation process to promote appropriate visibility and timely management attention for significant incidents and service issues.

(a) If an incident is not being resolved within the applicable target timeframe, or either Party reasonably considers that additional attention is required due to the nature or severity of the incident, the incident may be escalated in accordance with our escalation procedures.

(b) Escalation may occur through the support contacts, account contacts or service management contacts nominated by us from time to time, including those set out in our support documentation, onboarding materials, Account, Site or other written communications.

(c) We may designate different escalation contacts for technical, operational, commercial or account-related matters.

(d) We may update our escalation contacts and contact details from time to time by notice to you, by updating the relevant details on the Site, through your Account, or in our support documentation.

(e) Nothing in this clause requires us to maintain any particular individual in a nominated role, and any contact details provided by us are for operational convenience only.

11. Privacy

11.1. Personal Data

To the extent that we process Customer Data that contains Personal Data, we will do so in accordance with applicable Privacy Laws, this Agreement, and any applicable Data Processing Addendum.

11.2. Your responsibilities

Except to the extent expressly stated otherwise in this Agreement, you are responsible for the collection, use, storage, disclosure and other processing of Personal Data related to your business and for ensuring that your Customer Data is collected and provided to us lawfully.

You must, and must ensure that your Personnel and Authorised Users:

(a) comply with all applicable Privacy Laws in connection with the collection, use, storage, disclosure and other processing of Personal Data under or in connection with this Agreement;

(b) provide all notices and obtain all consents required by applicable Privacy Laws to enable us to lawfully provide the Services and process Personal Data in accordance with this Agreement;

(c) ensure that any Personal Data provided to us is, to the extent required by applicable Privacy Laws, accurate, complete and up to date;

(d) promptly notify us if you become aware of any actual or suspected breach of applicable Privacy Laws or any actual or suspected unauthorised access, use or disclosure of Personal Data that may affect the Services or our processing of Personal Data under this Agreement; and

(e) not give us any instruction, or otherwise use the Services in a way, that would cause us to breach applicable Privacy Laws.

11.3. Disclosure of Personal Data to us

You may only disclose Personal Data to us if:

(a) you are authorised by applicable Privacy Laws to collect, use and disclose that Personal Data for the purposes contemplated by this Agreement; and

(b) you have provided all required notices to, and obtained all required consents from, the relevant individuals, including notice that their Personal Data may be disclosed to us and our service providers for the purposes of providing the Services.

12. Fees and payment

12.1. Fees

You must pay the Fees and all other amounts payable under this Agreement in accordance with this Agreement, your Account, Order, Accepted Quote, statement of work, or as otherwise agreed in writing between the Parties.

Unless otherwise agreed in writing, we may invoice you in advance for each billing cycle based on your selected subscription plan, billing cycle and Authorised Licence Metrics, and you must pay each invoice within 30 days after the invoice date or such other period specified in the applicable invoice, Account, Order or Accepted Quote (**Payment Terms**).

12.2. Payment method

You must pay all Fees and other amounts due under this Agreement without set-off, counterclaim, deduction or delay, using the payment method specified by us, including credit card, direct debit, bank transfer or any other payment method made available through the Site, your Account, or otherwise agreed by us.

We may charge an administrative fee for certain payment methods where permitted by law and where disclosed to you before payment.

12.3. Change to Fees

We may change the Fees on at least 30 days' prior notice to you. Any change to the Fees will take effect from the start of the next billing cycle after the expiry of that notice period, unless otherwise expressly stated in the applicable Order, Accepted Quote or statement of work.

12.4. Failure to pay

If you do not pay any amount due under this Agreement in accordance with the Payment Terms, we may, to the maximum extent permitted by law and without limiting our other rights:

(a) suspend or cease providing all or part of the Services until the overdue amount is paid;

(b) charge interest on overdue amounts at the rate of 1.5% per month, calculated daily and compounding monthly, or, if lower, the maximum rate permitted by law;

(c) recover from you any reasonable costs of collection, enforcement or recovery, including debt collection costs and legal costs on a full indemnity basis; and

(d) terminate this Agreement in accordance with clause 16.

12.5. Recommencement of Services

If we suspend the Services for non-payment and you subsequently pay the overdue amounts in full, we will use reasonable efforts to recommence the Services within a reasonable period.

13. Taxes

13.1 Taxes

Unless expressly stated otherwise, all Fees and other amounts payable under this Agreement are exclusive of GST, VAT, sales tax, withholding tax and any similar taxes, duties or levies.

13.2 GST

If GST is payable on any supply made under or in connection with this Agreement, you must pay us an additional amount equal to the GST payable on that supply, subject to us providing a valid tax invoice where required by law.

14. Intellectual Property Rights

14.1. Our Intellectual Property

All Intellectual Property Rights in the Services, Software, Site, documentation, materials and all other works, developments, modifications, adaptations, enhancements, configurations, customisations, derivative works, tools, processes, know-how and other materials created, developed, adapted, modified or supplied by us or our Personnel, whether independently or in connection with this Agreement, remain vested in and are owned by us or our licensors.

Except for the rights expressly granted to you under this Agreement, no right, title or interest in or to any Intellectual Property Rights of ours or our licensors is transferred to you.

14.2. Restrictions

You must not, and must not permit any other person to, without our prior written consent except as expressly permitted by this Agreement or by law:

(a) copy, reproduce, modify, adapt, translate or create derivative works from the Services, Software or any of our Intellectual Property Rights;

(b) reverse engineer, reverse assemble, decompile, disassemble or otherwise attempt to derive source code, trade secrets or know-how from the Services or Software;

(c) distribute, publish, sublicense, assign, transfer, sell, resell, lease, rent, timeshare, outsource, provide as a service bureau, or otherwise make the Services available to any third party;

(d) frame, mirror, embed or otherwise incorporate any part of the Services into any other website, platform or service;

(e) remove, alter or obscure any copyright notice, trade mark, patent notice, confidentiality legend or other proprietary notice appearing on or in the Services or Software; or

(f) use our Intellectual Property Rights in any way that infringes our rights or the rights of our licensors.

14.3. Analytics

Despite anything else in this Agreement, we may collect, generate, use, analyse and disclose statistical, operational, usage and performance data derived from or relating to your use of the Services, provided that such data is aggregated and de-identified so that it does not identify you, any Authorised User or any individual (**Analytics**).

We may use Analytics for our internal business purposes, including to operate, support, secure, improve and develop the Services and our other products and services, and we may disclose Analytics publicly provided it remains aggregated and de-identified.

14.4. Ownership of Analytics

As between the Parties, we own all right, title and interest, including all Intellectual Property Rights, in and to the Analytics and any related models, reports, benchmarks, insights, documentation, software and materials generated by or for us using the Analytics.

14.5. Ownership of Customer Data

As between the Parties, you retain all right, title and interest, including all Intellectual Property Rights, in and to the Customer Data.

14.6. Licence to Customer Data

You grant us and our Personnel a non-exclusive, worldwide, royalty-free licence for the Term to host, copy, transmit, store, back up, reproduce, modify, format and otherwise use the Customer Data to the extent reasonably necessary to:

(a) provide, operate, host, support and improve the Services;

(b) enable you and your Authorised Users to access and use the Services;

(c) maintain security, diagnose issues, perform maintenance, create backups, and prevent or address service, technical or security problems;

(d) comply with applicable Laws and our legal obligations; and

(e) develop, improve and enhance the Services and related products and services, provided that any use of Customer Data for those purposes is on an aggregated and de-identified basis where required by applicable law.

14.7. Publicity

We may identify you as a customer and use your name and logo in our customer lists, website, sales materials and other promotional materials only with your prior written consent.

14.8. Customer Data responsibilities and warranties

You are solely responsible for the Customer Data and for all use, collection, disclosure, quality, integrity, accuracy and lawfulness of the Customer Data.

You represent and warrant that:

(a) you have obtained and will maintain all rights, licences, consents, permissions and releases necessary to provide the Customer Data to us and to allow us to use the Customer Data as contemplated by this Agreement;

(b) the Customer Data, and our receipt, use, hosting and processing of it in accordance with this Agreement, will not infringe any third-party rights or breach any applicable Laws;

(c) your use of the Services and the Customer Data will comply with all applicable Laws, privacy policies and contractual obligations binding on you; and

(d) where the Services allow you to manage permissions or restrict access to Customer Data, you are responsible for configuring and managing those permissions appropriately.

14.9 Responsibility for Customer Data

Subject to clause 11 and to the extent caused by our breach of this Agreement or applicable law, we are not responsible for the Customer Data or for any loss, disclosure, corruption, deletion or use of Customer Data arising from your use of the Services, your instructions, your configuration settings, or any act or omission of you, your Personnel, Authorised Users or third parties.

15. Liability exclusions, indemnity and acknowledgements

15.1. Liability cap

To the maximum extent permitted by law, our total aggregate Liability arising out of or in connection with this Agreement, whether in contract, tort (including negligence), under statute, in equity or otherwise, is limited to the total Fees paid or payable by you to us under this Agreement in the 12 months immediately preceding the event giving rise to the Liability.

15.2. Exclusion of Consequential Loss

To the maximum extent permitted by law, neither Party is liable to the other for any Consequential Loss arising out of or in connection with this Agreement, whether in contract, tort (including negligence), under statute, in equity or otherwise.

15.3. Exclusions from Liability

To the maximum extent permitted by law, we are not liable for any Liability arising from or in connection with:

(a) any loss of or damage to property, personal injury, death, or loss suffered by any person;

(b) any delay in providing, failure to provide, interruption to, or unavailability of the Services; or

(c) any issue relating to the Computing Environment, Customer Data, or any Third-Party Inputs,

to the extent that the relevant Liability was caused or contributed to by:
(d) a Force Majeure Event;

(e) any fault, defect, error or omission in the Computing Environment, Customer Data or any Third-Party Inputs; or

(f) any act or omission of you, your Personnel, your Authorised Users, your related parties, or any third party, including your customers, end users, suppliers, providers or subcontractors.

Without limiting the above, and to the maximum extent permitted by law, we are not liable for any lack of suitability of the Services for your particular purposes, or for any failure of the Services to achieve any anticipated result, outcome or benefit, except to the extent expressly stated in this Agreement.

15.4 Indemnity

To the maximum extent permitted by law, you indemnify us and our Personnel against any Liability suffered or incurred by us, to the extent arising from:

(a) any breach of clause 11 (Privacy), clause 14 (Intellectual Property Rights and Customer Data), or clause 18 (Confidential Information) by you or your Authorised Users; or

(b) any unlawful, improper or unauthorised use of the Services by you, your Personnel or your Authorised Users.

15.5 Consumer protection laws

Nothing in this Agreement excludes, restricts or modifies any rights, remedies, guarantees or warranties that cannot lawfully be excluded, restricted or modified under applicable consumer protection laws (**Statutory Rights**).

Except for any Statutory Rights, and to the maximum extent permitted by law, all warranties, representations, guarantees, conditions and terms not expressly set out in this Agreement are excluded.

15.6 Acknowledgements

You acknowledge and agree that:

(a) you are responsible for all access to and use of the Services through your Account, including by your Personnel and Authorised Users;

(b) your use of the Services and any associated software, files, outputs and integrations is at your own risk, except to the extent expressly stated in this Agreement;

(c) the technical processing and transmission of the Services and Customer Data may involve transmissions over various networks and changes necessary to conform and adapt to the technical requirements of connecting networks, devices or systems;

(d) we may use third-party service providers, including hosting, infrastructure, software and integration providers, to provide the Services;
(e) if any third-party product, service or integration becomes unavailable, is modified, or ceases to be available on reasonable commercial terms, we may modify, suspend or discontinue any affected part of the Services without Liability, unless otherwise expressly agreed in writing;

(f) the Services may interoperate with or rely on third-party products, facilities or services, and we do not make any warranty or representation in respect of those third-party products, facilities or services;

(g) we do not warrant that any file or program made available through the Services will be free from viruses, malware or other harmful code, and you are responsible for implementing appropriate security measures and virus protection;

(h) we are not responsible for the integrity, existence, backup or recovery of any data, systems, networks or devices controlled by you or your Authorised Users, except to the extent expressly stated in this Agreement; and

(i) we may seek injunctive relief, equitable relief or any other remedy available at law if you breach this Agreement.

16. Termination

16.1. Mutual Termination

The Parties may terminate this Agreement at any time by written agreement signed by both Parties.

16.2. Termination without cause

Either Party may terminate this Agreement for convenience by giving the other Party at least 30 days' prior written notice.

If the termination notice period does not expire on the last day of the current billing cycle, this Agreement will continue until the end of the next billing cycle occurring after that notice period has expired.

16.3. Termination for cause

To the extent permitted by law, either Party may terminate this Agreement, with written notice, if the other Party:

(a) materially breaches this Agreement and, where that breach is capable of remedy, fails to remedy the breach within 20 Business Days after receiving written notice requiring it to do so;

(b) ceases to carry on business without a successor; or

(c) becomes insolvent, is unable to pay its debts as and when they fall due, enters into liquidation, administration or receivership, or is otherwise subject to any form of insolvency event.
Without limiting our other rights, we may terminate this Agreement by giving you 5 Business Days' written notice if you fail to pay any undisputed amount due under this Agreement within 30 days after the applicable payment due date.

You may terminate this Agreement by written notice if we notify you of an amendment to this Agreement under clause 19.1 and you exercise your right to terminate in accordance with that clause before the relevant amendment takes effect.

16.4 Effect of termination

On termination or expiry of this Agreement:

(a) except for any limited post-termination access expressly permitted under clause 16.5, your right to access and use the Services immediately ceases, and we may cease providing the Services;

(b) all Fees and other amounts accrued or payable up to the date of termination or expiry become immediately due and payable, including for Services already supplied but not yet invoiced;

(c) except as expressly stated otherwise in this Agreement or required by law, all amounts paid are non-refundable;

(d) each Party must promptly return, delete or destroy the other Party's Confidential Information in its possession or control, except to the extent retention is required by law, for regulatory purposes, or for legitimate internal record-keeping, backup or compliance purposes;

(e) we may retain and deal with Personal Data and Customer Data in accordance with this Agreement, the Data Processing Addendum and applicable law;

(f) any provision of this Agreement which by its nature is intended to survive termination or expiry will continue in force, including clauses relating to payment, confidentiality, intellectual property, liability, indemnities, privacy, accrued rights and dispute resolution; and

(g) termination or expiry does not affect any accrued rights, remedies, obligations or liabilities of either Party existing as at the date of termination or expiry.

16.5 Access to and removal of Customer Data

Following termination or expiry of this Agreement, you may, for up to 3 months, access the Services solely for the purpose of retrieving or exporting your Customer Data, provided that:

(a) you have paid all Fees and other amounts due under this Agreement; and

(b) we may restrict that access to a limited functionality basis reasonably required for data retrieval.

After that 3-month period, and subject to the Data Processing Addendum and applicable law, we may permanently delete or otherwise remove Customer Data from the Services and our systems.

16.6 Accrued rights

The termination or expiry of this Agreement does not affect any rights, remedies, obligations or liabilities of either Party that accrued before the date of termination or expiry.

17. Warranties

17.1. Our warranties

We warrant that:

(a) we are duly incorporated, validly existing and have the full right, power and authority to enter into and perform this Agreement;

(b) we will provide the Services in material compliance with applicable Laws; and

(c) we will use reasonable care, skill and diligence to perform our obligations under this Agreement in a professional and workmanlike manner using suitably qualified Personnel.

17.2. Your warranties

You warrant that:

(a) you have the legal capacity, and all necessary rights, powers and authority, to enter into and perform this Agreement;

(b) you will provide, in a timely manner, all cooperation, assistance, resources, information, access, data, documentation and decisions reasonably required for us to provide the Services;

(c) all information and documentation you provide to us in connection with this Agreement is, to the best of your knowledge, true, accurate, complete and not misleading in any material respect;

(d) you will promptly notify us if you become aware of any matter that may materially affect our provision of the Services under this Agreement;

(e) you will obtain and maintain, at your own cost, all consents, licences, approvals, permissions and authorities required for the Services to be provided and used in accordance with this Agreement;

(f) you will maintain the confidentiality and security of your Account credentials and those of your Authorised Users;

(g) you have reviewed this Agreement, and any policies expressly incorporated into it, and you will access and use the Services in accordance with them; and

(h) you are responsible for obtaining and maintaining all hardware, software, systems, internet connectivity and other services necessary for you and your Authorised Users to access and use the Services.

17.3 No other warranties

Except as expressly set out in this Agreement, and subject to any Statutory Rights, we do not make any representation, warranty or guarantee in relation to the Services, including any implied warranty of merchantability, fitness for a particular purpose, non-infringement, uninterrupted availability, or that the Services will achieve any particular result.

18. Confidential Information

18.1 Confidential

Each Party (**Recipient**) must keep confidential, and not disclose, any Confidential Information of the other Party (**Discloser**) except:

(a) as permitted by this Agreement;

(b) with the prior written consent of the Discloser;

(c) to the Recipient's Personnel, professional advisers, auditors, insurers, agents, contractors or service providers who have a genuine need to know the Confidential Information for the purposes of this Agreement, provided that the Recipient ensures those persons are bound by obligations of confidentiality no less protective than those set out in this Agreement;

(d) if the Confidential Information is lawfully obtained from a third party without breach of any obligation of confidence; or

(e) where disclosure is required by applicable Law, a court of competent jurisdiction, or a regulatory authority, provided that, to the extent legally permitted, the Recipient gives the Discloser prior written notice and reasonably cooperates with any steps the Discloser may wish to take to limit or challenge the disclosure.

18.2 Permitted use

The Recipient may use the Discloser's Confidential Information only to the extent reasonably necessary for the purposes of performing its obligations, exercising its rights, or receiving the benefit of this Agreement.

18.3 Protection of Confidential Information

Each Recipient must take reasonable steps to protect the Discloser's Confidential Information from unauthorised access, use or disclosure.

18.4 Return or destruction

On request by the Discloser, or on termination or expiry of this Agreement, the Recipient must promptly return, destroy or permanently delete the Discloser's Confidential Information, except to the extent that:

(a) retention is required by applicable Law, regulation, or legitimate internal compliance, backup or record-keeping requirements; or

(b) the Confidential Information is stored in routine computer backups or archival systems, provided that it remains subject to the confidentiality obligations in this Agreement.

19. General

19.1. Amendment

We may amend this Agreement from time to time by giving you at least 30 days' prior notice by email, through your Account, on the Site, or by any other reasonable written notice.

If an amendment has a material adverse effect on you and you do not agree to it, you may terminate this Agreement by written notice given before the amendment takes effect. If you do not terminate before that date and continue to access or use the Services, you will be taken to have accepted the amended Agreement.

19.2. Assignment

Neither Party may assign, novate, transfer or otherwise deal with any of its rights or obligations under this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed, except that we may assign or novate this Agreement to a related body corporate or in connection with a merger, acquisition, corporate restructure, or sale of all or substantially all of the business or assets to which this Agreement relates.

19.3. Delays caused by you

If our provision of the Services depends on you or your Personnel providing information, materials, access, decisions, consents, approvals or other cooperation, you must provide them in a timely manner.

If you fail to do so:

(a) we will be entitled to a reasonable extension of time for any affected deadline or milestone;
(b) we will not be liable for any delay, failure or inability to perform to the extent caused by that failure; and
(c) where the delay continues for at least 2 months, we may terminate this Agreement by giving you 5 Business Days' written notice.

19.4. Disputes

Neither Party may commence court proceedings in relation to a dispute arising out of or in connection with this Agreement unless it has first given written notice of the dispute to the other Party and the Parties have met, or used reasonable efforts to meet, through senior representatives to attempt in good faith to resolve the dispute.

This clause does not prevent either Party from seeking urgent interlocutory or declaratory relief.

19.5. Notices

Any notice given under this Agreement must be in writing and sent by email or other permitted written electronic communication to the contact details last notified by the recipient Party, or by post to the recipient Party's registered office or principal place of business.

A notice is taken to be received:

(a) if sent by email or electronic communication, at the time of transmission unless the sender receives an automated failure notification; and

(b) if sent by post, 2 Business Days after posting within the same country, or 5 Business Days after posting internationally.

19.6. Entire agreement

This Agreement, together with any Order, Accepted Quote, statement of work, Data Processing Addendum and any documents expressly incorporated by reference, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, negotiations, understandings, representations and agreements relating to that subject matter.

19.7 Non-exclusive services

The Services are provided on a non-exclusive basis, and nothing in this Agreement prevents us from providing similar services to any other person.

19.8 Changes to features and functionality

We may modify, enhance, replace, suspend or remove features or functionality of the Services from time to time as part of the ongoing development and evolution of the Services.

If we make a material adverse change to the core functionality of the Services during the Term, we will give you at least 20 Business Days' prior notice, and you may terminate this Agreement by written notice given before that change takes effect.

19.9 Overseas access

The Services may be accessed from Singapore and other jurisdictions. We do not represent or warrant that the Services comply with the Laws of every jurisdiction outside Singapore. If you access or use the Services outside Singapore, you do so at your own risk and are responsible for complying with applicable local Laws.

19.10 Waiver

A failure or delay by a Party to exercise a right, power or remedy under this Agreement does not operate as a waiver of that right, power or remedy. A waiver is only effective if it is in writing.

19.11 Severability

If any provision of this Agreement is held to be invalid, illegal or unenforceable, that provision will be read down to the extent necessary to make it valid and enforceable. If that is not possible, it will be severed, and the remainder of this Agreement will continue in full force and effect.

19.12 Governing law and jurisdiction

This Agreement is governed by the laws of Singapore. Each Party submits to the non-exclusive jurisdiction of the courts of Singapore and their appellate courts.

20. Definitions

20.1 Definitions

In this Agreement, unless the context otherwise requires:

Account means an account created or maintained for you to enable access to and use of the Services by you and your Authorised Users.

Accepted Quote means any quote, proposal, pricing page, online checkout, order summary or similar document or interface issued or made available by us and accepted by you by signature, click-through acceptance, email confirmation, payment, or other written or electronic acceptance method approved by us.

Agreement means these terms and conditions, together with any Order, Accepted Quote, statement of work, Data Processing Addendum and any other annexure, addendum, schedule or document expressly incorporated by reference.

Analytics means statistical, operational, usage, performance or other data derived from or relating to your use of the Services, where that data has been aggregated and de-identified so that it does not identify you, any Authorised User or any individual.

Authorised Licence Metrics means the usage metrics, limits, entitlements or scope of use applicable to your subscription, as specified on the Site, in your Account, in an Order, Accepted Quote, statement of work, or otherwise agreed in writing, including by reference to desks, rooms, floors, buildings, square metres, square feet, users, modules, locations or other agreed metrics.

Authorised User means any person authorised by you to access or use the Services under your Account.

Business Day means a day other than a Saturday, Sunday or public holiday in Singapore.

Business Hours means 9:00am to 5:00pm on a Business Day in Singapore, unless otherwise stated in this Agreement or in applicable support documentation.

Computing Environment means your computing environment, including all hardware, software, systems, networks, telecommunications services, internet connectivity and other technology environments used by you or your Authorised Users in connection with the Services.

Confidential Information means information of a confidential nature relating to a Party or its business, affairs, customers, suppliers, technology, operations, finances, products, services, Intellectual Property Rights, trade secrets, know-how, systems, processes or strategies, whether disclosed orally, visually, electronically or in writing, and whether or not marked confidential.

For us, Confidential Information includes the Software, the Services and our Intellectual Property Rights. For you, Confidential Information includes the Customer Data.

Confidential Information does not include information that:
(a) is or becomes public other than through a breach of confidence;
(b) was lawfully known to the Recipient before disclosure by the Discloser;
(c) is lawfully obtained by the Recipient from a third party without restriction and without breach of confidence; or
(d) is independently developed by the Recipient without use of or reference to the Discloser's Confidential Information.

Consequential Loss means any indirect, incidental, special or consequential loss, or any loss of profit, revenue, goodwill, opportunity, business, anticipated savings, reputation, production, use, or data, and any loss arising from business interruption, whether under statute, contract, tort (including negligence), indemnity, equity or otherwise.

Customer Data means any information, data, content, records, documents, logos, files or other materials inputted into, uploaded to, stored on, transmitted through, or generated through your use of the Services by you, your Personnel or your Authorised Users, but excludes Analytics.

Data Load means any loading, migration, import, digitisation, formatting or preparation of data, drawings, plans or related materials for use with the Services.

Data Processing Addendum means any data processing addendum, privacy addendum or similar document that applies to our processing of Personal Data under this Agreement.

Fees means all fees, charges and amounts payable by you under this Agreement, including subscription fees, setup fees, implementation fees, development fees, support fees and any other fees specified in an Order, Accepted Quote, statement of work, Account or on the Site.

Force Majeure Event means any event beyond a Party's reasonable control, including natural disasters, fire, flood, storm, earthquake, war, terrorism, civil unrest, epidemic, pandemic, quarantine restriction, labour dispute involving third parties, interruption to utilities or telecommunications, internet outage, failure of hosting or infrastructure providers, governmental action, or any other similar event.

GDPR means Regulation (EU) 2016/679 (General Data Protection Regulation), as amended or replaced from time to time.

Intellectual Property Rights means all intellectual and industrial property rights anywhere in the world, whether registered or unregistered, including copyright, patents, trade marks, service marks, designs, circuit layouts, domain names, business names, trade secrets, know-how and all rights of a similar nature.

Laws means all applicable laws, legislation, regulations, rules, ordinances, codes, standards, determinations and legally binding requirements of any governmental, regulatory or judicial authority.

Liability means any liability, loss, damage, cost, expense, charge, claim, demand, action, proceeding or judgment of any kind, whether direct or indirect, actual or contingent, present or future, and whether arising under statute, contract, tort (including negligence), indemnity, equity or otherwise.

Order means any order form, ordering document, Accepted Quote, purchase order, online order, checkout flow, statement of work or similar document or interface under which you order or subscribe for the Services.

Personal Data means “personal data”, “personal information” or any equivalent concept under applicable Privacy Laws.

Personnel means, in relation to a Party, that Party’s officers, employees, contractors, subcontractors, agents and representatives.

Privacy Laws means all applicable privacy, data protection, data security and direct marketing laws, regulations and legally binding requirements, including, where applicable, the GDPR.

Services means the hosted software-as-a-service products, features, functionality, support, hosting, implementation, setup and related services provided by us under this Agreement, including PlaceOS One and any agreed modules, features or related services.

Setup Services means any onboarding, implementation, configuration, setup, enablement, hosting preparation, integration assistance or related services described on the Site, in an Order, Accepted Quote, statement of work or otherwise agreed in writing.

Site means our website, portals, applications and online interfaces through which the Services are marketed, ordered, provisioned, managed or supported.

Software means the software, applications, code, interfaces, tools and related technology used by us to provide the Services, including any updates, upgrades, releases, fixes, modifications or enhancements.

Statutory Rights means any rights, remedies, guarantees or warranties that cannot lawfully be excluded, restricted or modified under applicable consumer protection laws.

Subscription Fees means the recurring fees payable for the ongoing subscription to the Services.

Support Hours means the support hours specified in this Agreement, your Order, Accepted Quote, Account, support documentation or on the Site.

System means any hardware, software, network, platform, infrastructure or IT system used by a Party from time to time.

Term means the term of this Agreement commencing under clause 5.3 and continuing until terminated or expired in accordance with this Agreement.

Third-Party Inputs means any third-party products, services, software, hardware, systems, integrations, infrastructure, platforms, hosting services, networks, suppliers, subcontractors or other external inputs on which the Services may depend, with which the Services may interoperate, or which may affect the Services.

21. Interpretation

21.1 Interpretation

In this Agreement, unless the context otherwise requires:

(a) the singular includes the plural and vice versa;

(b) headings are for convenience only and do not affect interpretation;

(c) a reference to a person includes an individual, company, corporation, partnership, trust, association, government agency or other entity;

(d) if any act required to be done under this Agreement falls on a day that is not a Business Day, it must be done on the next Business Day;

(e) the words **including**, **includes** and similar expressions mean **including without limitation**;

(f) a reference to writing includes email and any other form of electronic communication capable of being stored and read by the recipient;

(g) a reference to a clause, schedule, annexure or attachment is a reference to a clause of, or schedule, annexure or attachment to, this Agreement;

(h) a reference to **$** or **dollars** is to the currency specified in the applicable Order, Accepted Quote or invoice, and if no currency is specified, it is to United States dollars;

(i) a reference to any legislation or law includes any amendment, consolidation, replacement or re-enactment of it and any subordinate legislation made under it; and

(j) if a word or phrase is defined, its other grammatical forms have a corresponding meaning.

21.2 Contact details

For questions and notices, our contact details are:

Place Technology Group Pte Ltd
Registration Number: 202021470H
Address: 30 Cecil Street #19-08, Prudential Tower, Singapore 049712
Email: support@place.technology